119	**Benevides vs. S.I. Management, LLC** **2024-01400577**	**Motion for PAGA Action Settlement Approval** The Court has reviewed the supplemental materials provided by Plaintiff's Counsel and finds that they adequately address the previously identified issues except that counsel has failed to submit a revised proposed order as previously ordered by the Court on 3/12/2026 at ROA #103. Accordingly, the Court **sets an OSC re Monetary Sanctions for September 3, 2026 at 9:30 a.m. in Department CX102** for counsel's failure to comply with the Court's 3/12/2026 order. Any response to the OSC must be filed at least 5 court days prior to the OSC hearing. In the interests of justice, despite counsel's failure to submit a revised proposed order, Plaintiff Fernanda Benevides's Motion for Approval of PAGA Settlement is **GRANTED**. This is a PAGA-only action. On 5/17/2024, Plaintiff Fernanda Benevides filed a PAGA complaint against Defendants S.I. Management, Inc.; Stor-It Costa Mesa, LLC; Stor-It Downey Manager, LLC; Stor-It Long Beach, LLC; Stor-It Properties, Inc.; Stor-It Properties, LLC; and Stor-It Vault, LLC. (ROA #2.) Defendants filed separate answers on 7/2/2024. (ROA #25-31.) The operative complaint is the first amended complaint (FAC), filed on 9/11/2025, which alleges a single cause of action for PAGA penalties. (ROA #75.) Defendants filed separate answers on 9/29/2025. (ROA #77-83.) On 10/16/2025, Plaintiff filed the instant Motion for Approval of PAGA Settlement and submitted for the Court's review the PAGA Settlement Agreement and proposed notice/cover letter to aggrieved employees that will accompany the payment to them. The Motion seeks approval of the parties' proposed settlement of Plaintiff's PAGA claims for the non-reversionary gross settlement amount (GSA) of $125,000. On 3/12/2026, the Court continued the 1st hearing on the Motion and asked Plaintiff's counsel to address various issues. (ROA #103.) Plaintiff's counsel then submitted supplemental materials, including an amended version of the PAGA Settlement Agreement ("Amended Settlement") and an amended notice/cover letter to aggrieved employees (ROA #122). Based on a review of all submissions made in support of the Motion, the Court finds the settlement is fair and reasonable. The Court concludes that an attorneys' fee award totaling $31,250 or 25% of the GSA is fair, adequate, and reasonable for a settlement of this size, including considering the action's contingent nature and the results achieved, as well as counsel's work on this matter. The Court also concludes that counsel has not adequately supported their request for $250 in "Future Costs" with line-item descriptions for each filing

and dollar amounts for what the cost of each filing would be. Accordingly, the Court deducts the $250 in "Future Costs" from the amount requested.

The Court further concludes that a Service Payment of $5,000 is fair, adequate, and reasonable for a settlement of this size, considering that there was nothing extraordinary about Plaintiff's contribution to the case.

As a result, the Court grants the Motion and approves the following disbursements and awards from the Gross Settlement Amount:

- Attorneys' fees totaling $31,250.00 awarded to Plaintiff's Counsel;
- Litigation costs totaling $17,503.89 awarded to Plaintiff's Counsel;
- Settlement administration costs of $2,995.00 awarded to Phoenix Settlement Administrators; and
- Service Payment of $5,000 awarded to Plaintiff.

PAGA penalties in the amount of $68,251.11 shall be allocated as follows: seventy-five percent (75%), or $51,188.33, payable to the Labor and Workforce Development Agency (LWDA); and twenty-five percent (25%), or $17,062.78, payable to the Aggrieved Employees in accordance with the terms of the Amended Settlement Agreement.

Within five (5) court days, Plaintiff's Counsel must submit a revised Proposed Order that makes the revisions previously ordered by the Court and as follows:

1. The specific awards and disbursements should be revised to reflect the amounts set forth in this order.
2. The proposed order and judgment should identify the Settlement Agreement by its actual name.
3. The proposed order and judgment should reference by name and ROA number the declaration(s) to which the Settlement Agreement and any amendments thereto are attached.
4. All terms that require definition must either be defined in the proposed order and judgment itself or clearly incorporate by reference definitions found elsewhere in the record.
5. The proposed order and judgment should include the definitions of the Aggrieved Employees and the PAGA Period.
6. The proposed order and judgment should specify the setting of a Final Accounting hearing date. Counsel should not leave blank but should propose a realistic date, taking into account the deadlines associated with funding the settlement, mailing distributions, allowing the check-cashing deadline to pass, and depositing uncashed check funds pursuant to the terms of the settlement agreement. The Court usually sets these hearings 9-10 months after final approval if the check-cashing deadline is 180 days. The parties must report to the Court the total amount that was actually paid to Aggrieved Employees and all others in accordance with the settlement agreement. All supporting papers must also be filed at least sixteen (16) court days before the Final Accounting hearing

		date. As a reminder, this Court hears Law & Motion matters on Thursdays at 2:00 p.m. 7. The proposed order and judgment should state that the Court's continuing jurisdiction is pursuant to California Code of Civil Procedure section 664.6. Final Accounting will be set in accordance with the Court's Order of Final Approval and Judgment after Plaintiff's counsel proposes a realistic date. Counsel shall submit the final report of the settlement administrator regarding the status of the settlement administration no later than sixteen (16) court days prior to the hearing. The final report must include all information necessary for the Court to determine the total amount of the settlement funds actually paid to the Aggrieved Employees and all others in accordance with the Settlement, as well as the amount of unclaimed funds, if any, remitted to the State Controller's Unclaimed Property Fund. If the settlement funds are not completely disbursed by the report deadline, counsel must request a continuance. Failure to do so may result in the issuance of an Order to Show Cause re Monetary Sanctions. Plaintiff to give notice, including to the LWDA, of this ruling, and file proof of service within five (5) calendar days of the date the Order and Judgment is entered.
120	**Fabian vs. Fruth Custom Plastics, Inc.** **2024-01408686**	**Motion for Preliminary Approval of Class/PAGA Settlement** The Court has reviewed the supplemental materials provided by Class Counsel and finds that they adequately address the previously identified issues. Accordingly, Plaintiff Aidee Fabian's Motion for Preliminary Approval of Class Action and PAGA Settlement is **GRANTED**. This is a putative wage-and-hour class action and PAGA matter. On 6/21/2024, Plaintiff Aidee Fabian, individually and on behalf of all others similarly situated, filed a class action and PAGA complaint against Defendant Fruth Custom Plastics, Inc. (ROA #2.) Defendant answered on 8/14/2024. (ROA #13.) The operative complaint is the first amended complaint, filed on 11/6/2025 pursuant to a stipulated order, alleging various Labor Code wage-and-hour violations and unfair business practices, including a claim for PAGA penalties. (ROA #49.) On 11/13/2025, Plaintiff filed the instant Motion for Preliminary Approval of the Class Action and PAGA Settlement and submitted the Class Action and PAGA Settlement Agreement and Release ("Settlement Agreement") and Class Notice for the Court's review. The motion seeks preliminary approval of the parties' proposed settlement of Plaintiff's class and PAGA claims for the non-reversionary gross settlement amount (GSA) of $575,000. The GSA includes $30,000 allocated for PAGA penalties. On 3/5/2026, the Court continued the first hearing on the motion and asked Class Counsel to address various issues. Counsel then submitted supplemental materials, including an Amendment to Class Action and